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Tentative Ruling

DEFENDANT J.B. HUNT TRANSPORT,
INC.'S NOTICE OF MOTION AND MOTION FOR PROTECTIVE ORDER PROHIBITING THE
DEPOSITION OF J.B. HUNT TRANSPORT, INC.'S PERSON MOST KNOWLEDGEABLE is GRANTED.

Background

This case arises from a car
accident that happened on May 4, 2023.

On April 2, 2025, Plaintiff ADRIANA
RUTH ARTEAGA filed suit against EDUARDO OLIVARES; J.B. HUNT TRANSPORT, INC.

On April 14, 2025, an answer was
filed.

On May 7, 2026, the instant motion
was filed.

On August 5, 2026, an opposition was
filed.

On September 4, 2026, the reply was
filed

Discussion

J.B. Hunt requests the court issue a Protective Order prohibiting Plaintiff from taking the deposition of J.B. Hunt's PMK. The categories of testimony for the PMK include, but are not limited to: "All citations received by OLIVARES REGARDING his conduct leading up to and including the moment of the INCIDENT"; "All safety procedures YOU expected OLIVARES to follow as of the INCIDENT date REGARDING vehicle operation and roadway conduct while in the course and scope of his employment by YOU"; "All of YOUR policies and procedures in effect during the five (5) years before and including the date of the INCIDENT REGARDING the training of YOUR drivers" and "All safety procedures YOU expected YOUR drivers to follow as of the INCIDENT date while in the course and scope of their employment by YOU"; and "YOUR investigation REGARDING the INCIDENT."

Defendant indicated to Plaintiff

that a PMK would not be produced per the California supreme court's ruling in *Diaz v. Carcamo* (2011) 51 Cal.4th 1148, the notice seeks privileged material and information, and the notice is duplicative, unduly burdensome, and harassing. This is so because J.B. Hunt has admitted that Olivares was acting within the course and scope of his employment at the time of the accident and has similarly accepted vicarious liability for his actions, should he be deemed negligent.

Issue

While

Plaintiff maintains that Defendant's reliance upon *Diaz* is misplaced, the case squarely resolves the (main) issue at hand which is whether Plaintiff is entitled to the procedures, policies, and driver history if the employer (JB Hunt) has accepted liability. The answer is an unequivocal no.

Diaz v. Carcamo

In *Diaz*, the plaintiff was injured in a car accident, and she alleged that "[the driver Carcamo] [] had driven negligently and that [her employer Sugar Transport] was both vicariously liable for employee Carcamo's negligent driving and directly liable for its own negligence in hiring and retaining him." (Id. at p. 1152.) The defendant-employer offered to admit vicarious liability which the defendant-employer "argued, would bar plaintiff from further pursuing her claims for negligent entrustment, hiring, and retention." (Id. at

p. 1152.) The trial court disagreed and over the employer's objection, it admitted evidence of Carcamo's driving and employment history, as offered by plaintiff in support of her negligent hiring claim, which showed the driver had previous accidents. (Id. at p. 1153.) The employer continued to maintain that plaintiff may not proceed with her negligent hiring and retention claims, including opposing jury instructions, and it thereafter "sought a mistrial, claiming the prior-accident evidence had been highly prejudicial." (Ibid.) The state's supreme court granted the employer's petition for review and reversed the appellate court. (A large part of the court's opinion discussed comparative fault principles.) Of relevance here was wherein the plaintiff in Diaz offered evidence of the past accidents to "show that Sugar Transport's driver, Carcamo, was prone to drive negligently (which was relevant to plaintiff's negligent hiring and retention claims against Sugar Transport)." (Id. at p. 1161.) Additionally, the "plaintiff presented extensive testimony about Sugar Transport's inadequate hiring practices, thereby making the company appear indifferent to the need to screen or train drivers for safety." (Ibid.) The state's supreme court went on to say that "All of that evidence should have been excluded after Sugar Transport offered to admit vicarious liability." (Ibid.)

Here, applying the foregoing, the PMK's testimony therefore has no tendency to prove or disprove any consequential fact and is not relevant. As such, the only remaining issues in this litigation are fault, Plaintiff's claimed injuries, – including causation and extent – the reasonableness and necessity of medical treatment, and the usual and customary charges for such treatment, and the deposition J.B. Hunt's PMK would not reasonably lead to the discovery of admissible evidence to those issues.

To the extent that Plaintiff cites to Dillenbeck v. City of Los Angeles and Powell v. Pacific Electric R.R. Co. to support their proposition that "establishing that internal safety rules, policies, and procedures may constitute admissible evidence of negligence and are discoverable where relevant to the conduct of an employee driver," those cases are not instructive. Dillenbeck involved "the extent to which plaintiffs can utilize the directives and statements of facts in the police department's bulletins to assist the jury." (Dillenbeck, supra, 69 Cal.2d at p. 477.) And Powell was an action for damages arising out of a collision at a railroad crossing and the issue on appeal was whether safety rules of an employer are admissible as evidence regarding the standard of due care. Neither

case involved an employer-defendant being sued for the alleged negligent driving of an employee, let alone when the employer-defendant admits to vicarious liability. (The reply does not address either case.)

Thus, the court determines that the deposition of J.B. Hunt's PMK is not required as to employment practices, training, policies, procedures, or employee specific hiring and/or discipline.

Those categories aside, there appear to be other ones in dispute. For example, there are claims regarding attorney work product privilege and anticipation of litigation privilege regarding No. 6 (investigation into the incident). The proper vehicle by which to challenge a matter of examination on the grounds of privilege in a Notice for Deposition of a PMK is a Motion for Protective Order. (CCP § 2025.420(b).) Also, Plaintiff's Notice included 16 Requests for Production, and Fifteen of these requests were duplicative of Requests for Production served during written discovery, to which Defendants have provided responses and production. Courts may issue a protective order to restrict the use of discover that is "unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive." (Code Civ. Proc. § 2019.030(a)(1).)

The Opposition is silent as to these issues such that the court determines that defendant has met its burden.

Conclusion

Based on the foregoing, the court issues a protective order prohibiting Plaintiff from taking the deposition of Defendant's PMK and relieving Defendant of responding to the Requests for Production contained in the Notice.